

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF _____

Index No.: _____

Date Summons filed: _____

Plaintiff designates _____

County as the place of trial

The basis of venue is:

Plaintiff,

-against-

Jane Doe

Defendant.

New York County

SUMMONS WITH NOTICE

Plaintiff/Defendant resides at:

ACTION FOR A DIVORCE

John Doe

To the above named Defendant:

YOU ARE HEREBY SUMMONED to serve a notice of appearance on the ☐ *Plaintiff*
OR ☐ *Plaintiff's Attorney(s)* within twenty (20) days after the service of this summons, exclusive
of the day of service (or within thirty (30) days after the service is complete if this summons is not
personally delivered to you within the State of New York); and in case of your failure to appear,
judgment will be taken against you by default for the relief demanded in the notice set forth below.

Dated _____

☐ *Plaintiff*

☐ *Attorney(s) for Plaintiff*

Phone No.:

Address:

NOTICE: The nature of this action is to dissolve the marriage between the parties, on the
grounds: ****DRL §170 subd. _____ -**
DRL §170(7) - irretrievable breakdown in relationship

The relief sought is a judgment of absolute divorce in favor of the Plaintiff dissolving the marriage
between the parties in this action.

The nature of any ancillary or additional relief requested (see p.14 of Instructions) is:

☐ Additional page describing ancillary relief requested is attached; ☐ Restoration of maiden name and equitable distribution pursuant to agreement

☐ Marital property to be distributed pursuant to separation agreement/stipulation;

☐ I waive distribution of Marital property;

For divorces commenced on or after 1/25/16 only: ☐ *I am not seeking maintenance as payee as
described in the Notice of Guideline Maintenance (the "Notice") other than what was already agreed
to in a written agreement/stipulation ; OR* ☐ *I seek maintenance as payee, as described in the Notice*

☐ **NONE** - I am not requesting any ancillary relief;

AND any other relief the court deems fit and proper

****Read pp. 3-5 of Instructions and insert the grounds for the divorce:**

DRL §170(1) - cruel and inhuman treatment

DRL §170(4) - adultery

DRL §170(2) - abandonment

DRL §170(5) - living apart one year after separation decree or judgment of separation

DRL §170(3) - confinement in prison

DRL §170(6) - living apart one year after execution of a separation agreement

DRL §170(7) - irretrievable breakdown in relationship